

Form SC (C)-1

[See rule 3 of the Customs (Settlement of Cases) Rules, 2007]

Before the Customs and Central Excise Settlement Commission

_____ **Bench at** _____

Form of application for settlement of a case under section 127B

1.	Full Name of the applicant:
2.	(i) Postal address of the applicant :
	(ii) E-mail address of the applicant, if any
3.	(i) Address for communication:
	(ii) Telephone No.
4.	(i) Permanent Account No :
	(ii) IEC No :
	(iii) Status : [see note 2]
5.	(i) Commissioner of Customs having jurisdiction over the applicant :
	(ii) Postal address of the Commissioner of Customs having jurisdiction over the applicant:
6.	Details of the Show Cause Notice issued to the applicant
	(a) Show Cause Notice No. and date
	(b) Period of dispute in the notice
	(c) Duty demanded in the notice (in Rs.)
	(d) Dispute in connection with which the application for settlement is made.
	(e) Adjudicating authority before whom the notice is pending adjudication.
7.	(i) Whether Bill(s) of Entry or Shipping Bill(s), as the case may be, showing full particulars of the goods and customs duty paid was/were filed.
	(ii) Whether the disputed goods were entered in the Bill(s) of Entry or Shipping Bill(s). If so, details thereof.
	Note: Self-attested copies of relevant Bill(s) of Entry /Shipping Bill(s) to be enclosed.
8.	Date of seizure, if any.
9.	Brief facts of the case and particulars of the issues to be settled.
10.	(a) Amount of duty accepted as payable for settlement. (in Rs.)
	(b) Interest on the said admitted duty.(in Rs.)
11.	Payment details of the duty accepted, by the applicant along with interest as at (10) above. (TR-6 challan No. and date).

12.	Whether any application for settlement has been filed by the applicant before any Bench of Settlement Commission on or before 31st May, 2007, if so, details thereof: (a) Application No. and date (b) Amount admitted for settlement (c) Details of final order of the Commission (d) Whether settlement amount has been paid in terms of the order
13.	Whether any application for settlement (other than the present one) has been filed by the applicant before any Bench of Settlement Commission on or after 1st June, 2007. If yes, the following information may be provided: (a) Application No. and date (b) Show cause notice No. and date (c) Amount of admitted duty (d) Issue involved (e) Status of the application, if decided, then (i) Settlement order No. and date (ii) Details of deposit of settlement amount
14.	If any other application, filed by the applicant, on or after 1st June, 2007, is pending before the Settlement Commission, then whether the present application for settlement involves issue identical to the issue in respect of which the other application is pending before the Settlement Commission as on date.

Signature of the applicant

Verification

I.....son/daughter/wife of.....residing at.....
do solemnly declare that I am making this application in my capacity as. and I am competent to verify it.

That the contents of this application are true and that I have not filed any application for settlement in contravention of the provisions of the Chapter XIVA of the Customs Act, 1962 before the Settlement Commission and also that no information relevant to the facts of the case has been suppressed. Annexures of the documents accompanying the application are true copies of the originals and the tables showing financial transactions are correct and are duly attested by me.

That no proceeding in respect of the case for which settlement is being sought, is pending before Commissioner (Appeal), Customs, Excise and Service Tax Appellate Tribunal or the courts, as the case may be, or has been remanded back to the adjudicating authority by the said appellate authorities.

Verified today the.....day of..... (mention the month and year) at(mention the place)

Deponent

Note:

1. The application fee should be credited in a branch of the authorized bank or a branch of the State Bank of India or a branch of Reserve Bank of India and the triplicate copy of the challan sent to the Settlement Commission with the application. The Settlement Commission will not accept cheques, drafts, hundies or other negotiable instruments.
2. Please state whether individual, Hindu undivided family, company, firm, an association of persons, etc.
3. Details of the additional amount of Customs duty accepted as payable and interest thereon referred to in item 10 of the application shall be furnished in annexure to this application.
4. Original copy of the TR-6 challan indicating amount of duty accepted as payable for settlement and interest thereon, referred to in item 10, be retained by the applicant, duplicate be endorsed to Customs Officer having jurisdiction over the applicant, triplicate be endorsed to the jurisdictional Chief Accounts Officer of the Customs Commissionerate, quadruplicate be retained by the bank and quintuplicate copy be enclosed with this application form.

Annexure

Statement containing particulars, referred to in item 9 of the application made under section 127B(1) .

1. Details of information which has not been correctly declared in the Bill of Entry/ Shipping Bill ;
2. Duty liability accepted to be payable out of the total duty demanded in the show cause notice issued and the manner in which such duty liability has been derived;
3. Full and true disclosure of the facts regarding the issues to be settled, including the terms of settlement sought for by the applicant.

Signature of the applicant

Place :

Date :